

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

SM LINE CORPORATION, *Respondent*.

DOCKET NO. 23-01

Served: October 30, 2023

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

ORDER GRANTING COMPLAINANT’S CONSENT MOTION FOR EXTENSION OF SCHEDULING ORDER

On October 25, 2023, Complainant Samsung Electronics America, Inc. filed a motion seeking a 7-week extension to the September 7, 2023 Revised Scheduling Order. In support of its motion, Complainant alleges that Respondent SM Line Corporation produced over 13,000 pages of responsive documents one day past the October 17, 2023 deadline. Combined with its production the previous day, Respondent produced 31,000 pages of documents, including documents related to the initial round of deponents (jointly designated as “Priority Witnesses” for the purposes of frontloading production). Complainant argues that review of these documents in preparation for depositions, in addition to the need to subpoena a foreign witness, necessitates an extension.

Respondent does not oppose the extension and acknowledges that there are many documents to review. Respondent filed a response to the motion to take issue with Complainant’s characterization of its conduct in discovery. Respondent attaches transmittal emails to show that it did produce documents on a rolling basis as agreed, and that the late production on October 18, 2023 was due to a “technical oversight.” Respondent also argues that the volume of documents is the result of Complainant’s overly broad requests.

The essential issue in the instant motion is whether there is good cause for an extension – given the volume of discovery, the late production (whatever the reason), and the need to subpoena a foreign witness, I find that there is. I encourage the parties to work together to resolve the disputes regarding Complainant’s document productions expeditiously – absent extraordinary circumstances, discovery will not be extended for the purpose of resolving motions to compel.

Accordingly, Complainant’s Motion for Extension of Scheduling Order is **GRANTED**. The parties are hereby **ORDERED** to follow this revised schedule:

January 19, 2024	Complete fact depositions
January 22, 2024	Expert discovery begins
February 9, 2024	Close of all discovery
March 15, 2024	Complainant's brief, proposed findings of fact, and appendix
April 15, 2024	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
April 29, 2024	Complainant's reply brief and responses to proposed findings of fact

**Alex Michael
Chintella**

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Alex Michael Chintella
Date: 2023.10.30
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Alex M. Chintella
Administrative Law Judge